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File No.: EXP202411736

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on August 2, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of access to their medical history against LA GAVIA TENERIFE S.L (hereinafter, the respondent) without their request receiving the legally established response.

The complainant states that they requested the right of access to their personal data, medical history, and treatments paid for and not performed via a burofax dated July 31, 2024, which was returned by the postal operator with the following annotation: "Returned to sender as unknown on August 1, 2024." They provide a copy of the mentioned burofax and the Certificate of Delivery Failure.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On September 14, 2024, the respondent submitted a document referencing several files processed by this Agency, and in relation to the present procedure, indicates that,

"That, upon requesting information from the Insolvent Party, they have communicated to us that prior to the declaration of Bankruptcy, the company had external services that complied with the obligations referred to in the complaint. Due to the insolvency that the respondent was undergoing, this service was discontinued.

As of the current date, given the bankruptcy situation of the aforementioned companies, it is not possible to restore this service."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on November 2, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

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The aforementioned agreement granted the respondent a hearing procedure, to present any allegations they deemed appropriate within ten working days.

On December 11, 2024, the respondent submitted a document referencing several files processed by this Agency, and in relation to the present procedure, indicates that,

"That, upon requesting information from the Insolvent Party, they have communicated to us that prior to the declaration of Bankruptcy, the company had external services that complied with the obligations referred to in the complaint. Due to the insolvency that the respondent was undergoing, this service was discontinued.

As of the current date, given the bankruptcy situation of the aforementioned companies, it is not possible to restore this service."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is

competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns them the function of cooperating with that authority.

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In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim for the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on November 2, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the submitted claim was admitted for processing. This admission to processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim to be accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge

(without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject.

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interested party, and to express their reasons in case they do not intend to comply with such request. The burden of proof regarding the fulfillment of the duty to respond to the request for the exercise of rights made by the affected party lies with the responsible party.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to such personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the responsible party provides remote access to the data, with the request being deemed fulfilled (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

The right of access in relation to medical records is specifically regulated in Article 18 of Law 41/2002, of November 14, which establishes the basic regulations governing Patient Autonomy and Rights and Obligations in the Field of Information and Clinical Documentation (hereinafter LAP), the literal text of which states:

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"1. The patient has the right to access, with the reservations indicated in section 3 of this article, the documentation of the medical history and to obtain a copy of the data contained therein. Healthcare centers will regulate the procedure that guarantees the observance of these rights.

2. The patient's right to access the medical history may also be exercised by duly accredited representation.

3. The patient's right to access the documentation of the medical history cannot be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein, collected in the therapeutic interest of the patient, nor to the detriment of the rights of the professionals involved in its preparation, who may oppose the right of access based on the confidentiality of their subjective notes.

4. Healthcare centers and individual practitioners will only facilitate access to the medical history of deceased patients to individuals connected to them for family reasons or by fact, unless the deceased expressly prohibited it and this is evidenced. In any case, access by a third party to the medical history due to a risk to their health will be limited to the relevant data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, will not be provided." In this regard, it is important to highlight Article 15 of the LAP, which outlines the minimum content of the medical history:

"1. The medical history will include information deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most appropriate technical support, of the information obtained in all their care processes, carried out by the health service both in primary care and specialized care.

2. The main purpose of the medical history will be to facilitate healthcare, documenting all data that, under medical criteria, allow for truthful and updated knowledge of the health status.

The minimum content of the medical history will be as follows:

a) Documentation related to the clinical-statistical sheet.

b) Admission authorization.

c) Emergency report.

d) Anamnesis and physical examination.

e) Progress notes.

f) Medical orders.

g) Consultation sheet.

h) Reports of complementary examinations.

i) Informed consent.

j) Anesthesia report.

k) Operating room or delivery record.

l) Pathological anatomy report.

m) Nursing care evolution and planning.

n) Therapeutic nursing application.

ñ) Vital signs chart.

o) Clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ), and o) will only be required in the completion of the medical history when it concerns hospitalization processes or as provided.

3. The completion of the medical history, in aspects related to direct patient care, will be the responsibility of the professionals involved in it.

4. The medical history will be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the professionals of the data of a particular patient in each care process."

Regarding the preservation of the medical history, Article 17 of the LAP, in its points 1 and 5, states that:

"1. Healthcare centers have the obligation to preserve clinical documentation under conditions that guarantee its proper maintenance and security, although not necessarily in the original support, for the proper care of the patient for the appropriate time in each case and, at a minimum, five years from the date of discharge from each care process (...)

5. Healthcare professionals who carry out their activity individually are responsible for the management and custody of the care documentation they generate."

V

Conclusion

During the processing of this procedure, the entity being claimed has responded to this Agency, highlighting the situation of bankruptcy in which it finds itself and the impossibility of attending to the requests made by the claiming party, solely due to this situation.

Consequently, it does not demonstrate having attended to the requests made by the claiming party, nor having informed them of the reasons for its inaction and the possibility of filing a complaint with a supervisory authority and exercising legal actions, sending them in any case the required response to their request. The claimed party is reminded that being in a state of bankruptcy does not exempt it from fulfilling its obligations regarding data protection, among which is the proper preservation and custody of medical histories.

Thus, it cannot be accepted that the response that corresponds to be given can be manifested on the occasion of a mere administrative procedure, such as the formulation of allegations with

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The reason for this procedure, initiated precisely for failing to properly address the request in question. The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that those responsible are obliged to issue, even in the event that there are no data in the files or even in cases where the requirements set forth are not met, in which case the recipient of said request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claimant informing them of the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been violated and to urge LA GAVIA TENERIFE S.L with NIF B86548161, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. The non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to LA GAVIA TENERIFE S.L.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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